

TENTATIVE RULING

Case: Lakeview Loan Servicing, LLC v. Pleines
Case No. CV2025-2456

Hearing Date: May 28, 2026 Department Fourteen 9:00 a.m.

Parties are **DIRECTED TO APPEAR.**

TENTATIVE RULING

Case: **Roth v. Simonis**
 Case No. CV2022-1935

Hearing Date: **May 28, 2026** **Department Thirteen** **9:00 a.m.**

Plaintiff John Roth’s motion to reopen discovery is **DENIED**. (Code Civ. Proc., § 2024.050.) In exercising its discretion to grant or deny defendant’s motion, this Court considers the factors enumerated in section 2024.050(b). (See *Pelton-Shepherd Industries, Inc. v. Delta Packaging Products, Inc.* (2008) 165 Cal.App.4th 1568, 1586–1587.) First, while plaintiff has articulated the necessity and reasons for the outstanding discovery, he has not shown that he was diligent in pursuing this discovery and does not provide adequate reasons as to why the discovery was not completed earlier. (Code Civ. Proc., § 2024.050, subds. (b)(1), (2); Carlock decl., ¶¶ 3-4 & 8-16, Exhibits 1-3.) Second, defendant Alan P. Simonis will be significantly prejudiced if the Court reopens discovery. (Code Civ. Proc., § 2024.050, subd. (b)(3); Barth decl., ¶ 9; see also Carlock decl., ¶ 15.) Finally, the Court finds that a significant amount of time has elapsed between the initial trial date (March 11, 2024) and the future trial date. (Code Civ. Proc., § 2024.050, subd. (b)(4); Carlock decl., ¶¶ 3, 6.)

Plaintiff’s request for sanctions is **DENIED**. (Code Civ. Proc., § 2024.050, subd. (c).) As the Court is denying plaintiff’s motion, defendant did not unsuccessfully oppose this motion. (*Ibid.*)

Defendant’s request for sanctions is **DENIED**. (Code Civ. Proc., § 2024.050, subd. (c).) While plaintiff unsuccessfully made this motion, the Court finds that he acted with substantial justification. (See Carlock decl., ¶¶ 4, 8-9, & 11, Exhibits 1-3.)

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.